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13. HERITAGE



Photograph - Orange Court House – an iconic heritage building

13.1 HERITAGE OBJECTIVES LEP 2000 Cl 74

Orange is recognised as having a rich heritage resource base of buildings and sites. The City's unique character is widely valued by the community and the source of considerable interest and appreciation by visitors.

LEP 2000 outlines the heritage-planning objectives for Orange, which include:

- heritage conservation

- public information and participation
- consideration of heritage character

HERITAGE CONSERVATION

Heritage conservation requires that consideration is given to ways that new development takes into account the City's heritage resources.

"Conservation" refers to the process of looking after heritage items and areas so as to retain their heritage significance for the community of Orange. It includes maintenance and may, according to circumstances, include preservation, restoration, reconstruction and adaptation (commonly involving a combination of more than one of these).

New buildings on or adjacent to a heritage site or within a heritage area require good design.

PUBLIC INFORMATION AND PARTICIPATION

Heritage initiatives require community support.

The community can participate in heritage initiatives in a number of ways, including:

- commenting on proposals for demolition that are likely to affect heritage significance
- participating in the Orange Heritage Advisory Committee, a committee involving Council and community representatives to recommend heritage initiatives for the City
- seeking information on local heritage

To support community-heritage initiatives, Council also:

- employs a Heritage Advisor
- manages a local heritage fund to assist owners undertake maintenance, repair and restoration work

CONSIDERATION OF HERITAGE CHARACTER

The City's heritage character is a combination of a number of individually-significant buildings and places (heritage items) and many buildings and places that together provide the local character of areas within the City, determined through the social history of the development of the City.

Individually-significant buildings and places are listed in LEP 2000 as "heritage Items", which include buildings and places with national, state or regional significance. Locally-significant buildings or places that are located outside Heritage Conservation areas are also identified as heritage items. The different classifications are explained in the 1986 Orange Heritage Study prepared by Hughes Trueman Ludlow for Orange City Council and the former Department of Environment and Planning (Heritage Branch).

Heritage-conservation areas are identified in LEP 2000. These areas have been identified due to a concentration of heritage significant buildings, predominantly locally-significant buildings and places that give an area its heritage character.

There are five heritage conservation areas in Orange:

- Central Orange
- East Orange
- Glenroi,
- Lucknow; and

- Spring Hill

Each conservation area has a unique character as summarised below (derived from the 1986 Orange Heritage Study):

CENTRAL ORANGE



Photograph - Kite Street

The Central Orange Heritage Conservation Area broadly corresponds with the original "square mile" town layout in a grid pattern. The area includes a high concentration of sites of heritage significance that display the progressive waves of the Town's growth.

The Conservation Area has different characteristics for residential areas and the commercial centre:

Residential Areas

There is an important spread of Victorian buildings (especially public and ecclesiastical buildings) and many buildings from the turn of the Century with late-Victorian and Edwardian features. These are of particular significance because of their concentration and general good condition.

Some significant Federation-style houses exist (though not extensive in number), a high proportion of which are located on corner blocks. The Bungalow style gradually became dominant over the next decade and bungalows of the twenties and thirties make up a major element in the housing stock of this area.

Within all these architectural styles there are significant common features. Of these, the use of the vernacular "buff-brown" or "oatmeal" brick is the most important, but also common is the use of corrugated iron for roofs and the consistent front-verandah element.

With these common elements from each of the building periods, together with wide streets often complemented by large trees, the Central conservation area has been described as "having a grace, consistency and highly urban character rarely found in the towns of New South Wales especially in the concentration that exists here".

A surprising number of front fences and gardens retain their original style and reinforce the identity of the periods.

The Commercial Centre – The CBD



Photograph - Summer Street

In the CBD, a strong consistency of scale and harmony of styles evident in the early 20th Century (from photographic records) has been progressively reduced. For example, ground-floor shopfronts from the 1870s to 1920s have been replaced with post-1960s styles and some first-storey facades have been covered with metal sheeting.

The Post Office precinct where the Post Office and Palmers Buildings are supported by the Commonwealth Bank, Hotel Canobolas, Royal Hotel and the interpretively-restored façade of the Orange City Centre provide a heritage focus for the CBD.

Other scattered commercial and public heritage buildings that have been identified as having heritage significance contribute to the City's heritage, even though the commercial core has lost much character due to reconstruction in unrelated style and materials and abrupt changes in scale over a number of years.

Development emphasis in the CBD should be to enhance the urban character of the traditional commercial core and to reinstate consistency in scale and character by good design and by conservation of key and contributing heritage buildings.

EAST ORANGE

The East Orange area of conservation interest is centred around the small nucleus of the former Municipal Council Chambers, the Post Office and the shops of the Dora, Summer and McLachlan Street intersection.

The buildings in East Orange (suburb of Bowen) are a diverse mix of mainly modest brick-and-timber houses, terraces and local shops displaying late-Victorian and Edwardian-period styles or the later Bungalow style.



Photograph - Dora Street

A few fine late-Victorian houses remain in McLachlan and William Streets, while a fine set of four Victorian single-brick terraces exist in Autumn Street, with houses from the same period opposite.

On the southern boundary of the Heritage area, the grand two-storey Bowen Terrace of 1876 provides an impressive entry to the town centre.

Some timber houses from the end of the 19th Century with original details are still evident in East Orange. Since the 1986 Heritage Study was prepared, a number of Victorian timber houses have been lost.

Corner shops are a characteristic of the East Orange area, with Mackies Store a notable example.

With the diversity of brick, timber and corrugated iron-clad buildings, the area contrasts in character with the consistency of the period brick houses in Central Orange. This diversity provides the area's character and affords broader options for material selection in new development.

GLENROI

This area was referred to as the South East Conservation Area in the 1986 Heritage Study.

The Glenroi Conservation Area extends south of the NSW Agriculture building off Bathurst Road.



Photograph - Kite Street, Glenroi

The area has a notable concentration of mainly brick houses in good condition from the late-Victorian and Edwardian periods as well as a good representation of bungalow housing. The smaller houses and single-storey terraces provide a good example of "worker's housing" from periods of the Town's growth. The housing is sited directly opposite former employment locations on the railway, wool stores and flour mill.

Quite a number of symmetrical brick cottages date from the late-Victorian period. A scattering of very fine *Turn-of-the-Century* (1890s-1900s) houses can be found near Bathurst Road.

13.2 HERITAGE ITEMS & HERITAGE CONSERVATION AREAS LEP 2000 Cl 75

Under LEP 2000, development consent is required for substantial changes that affect the heritage significance of the heritage item or heritage-conservation areas.

Substantial changes are deemed to occur at least under the following circumstances:

HERITAGE ITEMS

- development (including building, land shaping, fencing and subdivision, changes to landscaping) that encroaches within the curtilage of a building identified as having heritage significance;
- demolition of notable features identified in Heritage Inventory Sheets or Conservation-Management Plan prepared for the site, including major trees, gardens or fences where specifically identified in an inventory sheet or management plan;
- additions or alterations affecting notable features;
- removal or destruction of relics in the site that are identified as contributing to the heritage significance of the site in the Heritage Inventory Sheet or Conservation Management Plan.

HERITAGE CONSERVATION AREAS

- new building visible from a public place in a conservation area;
- demolition of notable features identified in Heritage Inventory Sheet or Conservation Management Plan prepared for the site;
- additions or alterations affecting notable features.

To determine notable heritage features of a heritage item or sites in a heritage conservation area, reference should be made to the Heritage Inventory Sheets held in Council.

HERITAGE INVENTORY SHEET	
Heritage Inventory Sheets include the following information at the time of survey (usually in 1984-5):	
• Photograph	Photo taken according to survey date and negative file reference
• Address	Street number and location at time of survey
• Building Title	Name, if any, such as “Duntryleague”, “Mena” etc
• Type	Use or purpose of the building
• Existing Designation	Listing by any heritage body or authority
• Significance Classification	Heritage significance assigned to the site according to National, State, Regional and Local level significance
• Streetscape	Streetscape Levels apply in Conservation areas. Level 1 is most significant, as outlined in the Heritage Study
• Style	Architectural style such as “Victorian”, “Federation” “Bungalow”,etc
• Period	The time period of construction
• Construction Date	If known, otherwise estimate such as c1928
• Materials	Where materials are not clearly shown, notes are provided
• Notable Features/Significance	A box marked with a tick indicates that a particular feature is notable; a brief description of notable features is also given
• Integrity	To what extent the appearance of the building relates to its original appearance
• Condition	The state of the building
• Alterations and Recommendations	External alterations are identified and recommendations made where alterations are considered to be unsympathetic to the style, period and features of the building - useful as a guide for owners wishing to restore their building

• Other Comments	Other relevant features of interest

When proposing a development that may affect heritage significance, the application is - as a minimum, - to include information that demonstrates the effect the development would have on the following heritage aspects as identified in the applicable Inventory Sheet(s):

- Significance Classification
- Style
- Streetscape (in a conservation area)
- Notable Features/Significance
- Alterations and Recommendations
- Other Comments

Such considerations are to be included in a site analysis to be submitted with a development application.

MINOR DEVELOPMENT

For the purposes of this Plan, "Minor Development" comprises exempt development in Schedule 3 to Orange LEP 2000 being one or more of the following:

- Ancillary development that does not affect any of the notable features identified in a Heritage Study Inventory Sheet referred to in point 2(f) of Schedule 3;
- Internal building alterations;
- Non-structural external building alterations involving the removal of features identified as being inappropriate or unsympathetic in the relevant Heritage Study Inventory Sheet;
- Repainting of painted or rendered external features using standard heritage colours relevant to the period and style of the building;
- Restoration of external features in accordance with recommendations made by Council's Heritage Adviser;
- Non-structural alterations that do not affect notable features identified on the relevant Heritage Study Inventory Sheet;
- Demolition undertaken in accordance with the relevant standards that is not on the site of a heritage item or identified as having heritage significance on the applicable Heritage Study Inventory Sheet;
- Front fence consistent with the period style recorded on the Heritage Study Inventory Sheet.

Any development not included in the above list that affects the recorded heritage significance and notable features will require development consent.

13.3 HERITAGE CONSIDERATION FOR DEVELOPMENT
LEP 2000 Cl 76

IMPACT ON HERITAGE SIGNIFICANCE

Design of new development should complement heritage character. This can be achieved in three ways:

Restoration	Works that return the building to its original form and style
Respectful Design	A "low-key" design approach where heritage building forms, proportions and materials are applied but reproduction of decorative work and detailing is avoided; the design should demonstrate that it is a contemporary building or addition that respects the heritage setting

Interpretive Design	Forms and proportions that relate to but do not reproduce heritage features; Good modern architecture is encouraged that fits in to a heritage setting

Council does not require restoration for locally-significant building works but assistance can be provided to property owners wishing to restore a heritage building.

Restoration may be appropriate for alterations to the most significant heritage buildings (ie, National or State significant buildings).

Respectful design principles apply to:

- all additions to heritage items
- additions to buildings with level 1 local significance
- new buildings or additions visible from public places for Level 1 or 2 streetscapes in a conservation area

Interpretive design is applicable for new buildings and additions to Level 2 or 3 buildings in conservation areas not listed above.



Photograph - Examples of heritage restoration

HERITAGE FEATURES

The following heritage features need to be considered when undertaking respectful or interpretive design:

- building scale and form; including height, width, roof form and pitch, chimneys
- façade features such as verandahs, window sizes and proportions, positioning of doors
- materials and external finishes
- fences
- gardens



Photograph - Consistent roof forms in the central conservation area

DEMOLITION

Development consent is required before demolition works proceed on buildings or works that have heritage significance - including demolition of part of a building that has been recorded as having notable heritage features on the Inventory Sheet.

Demolition of heritage significant items is a sensitive matter. Any proposal to demolish part or the whole of a building or work that is identified as having heritage significance by virtue of being recorded on a Heritage Inventory Sheet or as having Local Level 2 or 3 significance in a Heritage Conservation Area needs to be justified.

The application must include information to justify to Council's satisfaction that all options for retaining the building have been reasonably exhausted and that the development enhances or improves the heritage setting by conforming with heritage-design principles.

Council may require that a photographic record be professionally undertaken in accordance with NSW heritage guidelines. A photographic record is not to be construed as justification to demolish a building with heritage significance.

To demonstrate that the new development will enhance the character of the City, an application to demolish must include details of the proposed development requiring the demolition of the heritage-significant building or site.

Applications involving demolition affecting heritage significance will be advertised to assess the community's views on the demolition affecting a site or sites with heritage significance.

For heritage significant buildings that were constructed originally as dwellings, all reasonable means should be given to retaining the heritage building and incorporating it into the development. Small weatherboard or corrugated iron-clad buildings can be improved and excised (or form part of a larger infill residential development) from a development site as a source for lower-cost housing suitable for "first home owners".



Photograph - Adaptive reuse as a shop – formerly the Masonic Lodge building, which was once proposed for demolition

PO 13.3-1 PLANNING OUTCOMES – HERITAGE DEVELOPMENT

1 Development relates to the significant features of heritage buildings on or near the site, as reflected in inventory sheets.
2 Development conforms with recognised conservation principles.
3 Conservation Management Plans are prepared for development having a significant effect on heritage sites.

RELATED INFORMATION - HERITAGE CONSIDERATION FOR DEVELOPMENT

1 Hughes Trueman Ludlow. 1986 *Orange Heritage Study*
2 NSW Heritage Office. 2000 *Assessing Heritage Significance*
3 NSW Heritage Office. 1994 *Guidelines for Photographic Recording of Heritage Sites, Buildings and Structures*
4 NSW Heritage Office. 1995. *How To Carry Out Work on Heritage Buildings and Sites*
5 NSW Heritage Office 1995. Principles of Conservation Work on Heritage Places

13.4 DEVELOPMENT IN THE VICINITY OF HERITAGE ITEMS LEP 2000 Cl 77

Development in the vicinity of heritage items or on the fringe of a conservation area should address the relationship of the development with heritage sites in the vicinity.

Good interpretive design is appropriate for sites near the fringe of a conservation area or adjacent to a heritage item outside a heritage conservation area.

PO 13.4-1 PLANNING OUTCOMES –DEVELOPMENT IN THE VICINITY OF HERITAGE ITEMS

1 Development conforms with recognised conservation principles.

13.5 HERITAGE PROPOSALS AS ADVERTISED DEVELOPMENT LEP 2000 Cl 78

Demolition affecting heritage significance of a heritage item or in a heritage-conservation area requires advertising in order that the Orange community can participate in the determination process.

Development that may be carried out on the site of a heritage item but which would otherwise be prohibited development also requires advertising.

A development application that proposes the demolition of a heritage item (being sites listed in Schedule 8 of LEP 2000) must be referred to the NSW Heritage Office for consideration by the NSW Heritage Council. Any comments received from the Heritage Council within 28 days of notification must be taken into account in the determination.

PO 13.5-1 PLANNING OUTCOMES – ADVERTISING OF HERITAGE DEVELOPMENT PROPOSALS

1 The Community is provided with sufficient information to be able to consider and comment on the proposed development.

13.6 INCENTIVES FOR HERITAGE CONSERVATION

LEP 2000 Cl 79

LEP 2000 permits flexible planning to encourage conservation of heritage items.

Where it can be demonstrated that the conservation of a heritage item relies on a relaxation of planning provisions relating to the use and site requirements for development of the site, Council can approve development that would otherwise not conform with certain planning requirements as outlined in Clause 79 of LEP 2000.

An application must include information that demonstrates to Council's satisfaction that relaxation of planning provisions is justified, taking into account the structure and condition of the building. This information must demonstrate that the proposed use is compatible with the heritage significance of the site and will retain or reinstate notable features of the heritage item.

A conservation-management plan may be required to be submitted with a development application. The conservation-management plan is to indicate how the building is to be conserved in association with the proposed development.

Council can waive in part or in whole the requirement for car parking to encourage conservation of a heritage item. In determining if standard car-parking requirements are to be waived, Council must be satisfied that alternative parking is available in public car parks in the vicinity or as on street parking, in a manner that will not reasonably interfere with the amenity of the area or the function of the street.

PO 13.6-1 PLANNING OUTCOMES – HERITAGE INCENTIVES

1 The measures for conservation of a heritage item where development incentives are applied are clearly demonstrated in the development application and implemented in accordance with the approved conservation-management plan.

2 The use of a heritage item through applying heritage incentives is consistent with the character, function and amenity of the locality.

(next page is Page 14.1)